

Richard Orcutt v. Karen Hale, 20CV-0656

Hearing: Motion for Costs of Proof Sanctions and Motion for Award of Expert Costs

Date: July 22, 2026

On February 9, 2026, an Amended Judgment on Special Verdict was entered in favor of Karen Hale (Defendant). On March 13, 2026, Defendant filed a Motion for Costs of Proof Sanctions pursuant to Code of Civil Procedure section 2033.420, and a Motion for Award of Expert Costs Under Code of Civil Procedure section 998.

A proof of service is attached to each motion. Because the hearing date and time are not assigned until the motion is filed (Local Rule 7.05.1), the copies served on Richard Orcutt (Plaintiff) did not provide the hearing information as required by California Rules of Court, rule 3.1110(b).

On July 9, 2026, Plaintiff filed opposition to each motion based solely on the lack of proper notice due to the missing hearing information. On July 15, 2026, Defendant served Plaintiff with notice of the hearing date and time.

Code of Civil Procedure section 1005 requires that the hearing date specified in a notice of motion must allow for service and filing of the moving papers at least 16 court days before the hearing, plus additional time for service by mail (or by fax, email or overnight delivery). The July 22, 2026, hearing date is less than 16 court days from the July 15, 2026, notice of hearing.

Defendant argues that “the absence of a hearing date on the served notices was the product of this Court’s own filing procedure,” (Reply, p. 4, Ins. 26-27) and suggests the Court should exercise discretion to shorten the 16-day period. (Reply, p. 4, Ins. 1-5.) The Court declines to do so.

There is no requirement that a party serve motion papers before filing them and the moving party is responsible for giving notice of the date, time, and place of hearing. The file-stamped motions returned to Defendant state in large blue letters, “MOVING PARTY TO PROVIDE NOTICE OF THE DATE AND TIME OF HEARING.”

Shortening the notice period would prejudice Plaintiff who had no obligation to investigate whether and when the motions were set for hearing. Defendant acknowledges that a continuance is in order. (Reply, p. 5, ln. 14.)

Accordingly, the hearing is continued to December 16, 2026. Any opposition and reply papers must be filed and served according to code. Defendant is directed to give notice.